

**Tentative Rulings and Resolution Review Hearings
December 2, 2024
Department 63 (formerly Department 8)**

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings appear on the calendar outside the court department on the date of the hearing, pursuant to California Rule of Court, Rule 3.1308(b)(1). As a courtesy to counsel, the court also posts tentative rulings no less than 12 hours in advance of the time set for hearing. The rulings are posted on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

10:00 a.m. Special Set Motion

HARTLEY VS. SHASTA COMMUNITY HEALTH CENTER

Case Number: CVCV21-0198376

Tentative Ruling on Motion to Compel Independent Mental Health Examination of Plaintiff: Defendants Shasta Community Health Center, et al move to compel Plaintiff Lisa Hartley to submit to an independent psychiatric assessment and mental examination ("IME"). This motion was set on shortened time following an ex parte application as the trial is calendared for December 10, 2024. Plaintiff did not oppose the motion and instead filed a declaration not opposing the motion and providing Plaintiff's availability for the IME.

IME. A party may obtain discovery by means of a physical or mental examination of a party to the action. CCP § 2032.020. In this matter, the IME requested by Defendants is warranted based on Plaintiff asserting a cause of action for intentional infliction of emotional distress and placing her mental injuries in controversy. See *Vinson vs. Superior Court* (1987) 43 Cal. 3d 833. Good cause has been presented for the IME. Additionally, Plaintiff has agreed to submit to the IME. The motion is **GRANTED**.

The issue of scheduling remains. On July 17, 2024, Defendants served the Notice for the IME that was scheduled for August 17, 2024. It is now December and the IME has not taken place. The Court has reviewed all of the submitted communications between the parties regarding the IME. It is clear from the evidence presented that the parties agreed to an IME months ago and that Plaintiff's counsel caused scheduling issues. Each time Plaintiff's counsel presented an issue with the IME, Defendants' counsel worked diligently to address the issue. The parties agreed on November 8, 2024, for the IME and Dr. Greene was scheduled. It was not until two days prior to the IME that it was made clear to Defendants that the stipulation would not be signed and Plaintiff would not attend.

While the Court is sympathetic to Plaintiff needing to take time off work to attend the IME, the Court is aware that it is often far more difficult to schedule an expert than it is for an individual to take a day or partial day off work. Defendants have been more than accommodating of Plaintiff's schedule and worked around Plaintiff's schedule to their detriment. The Court notes that Dr. Greene is available to conduct the IME via Zoom at 8:30 a.m. on December 2, 2024. Should Plaintiff not sit for the IME on or before December 2, 2024, the Court orders that Plaintiff sit for the IME on the next date Dr. Greene has available, regardless of Plaintiff's work schedule or availability.

Issue and Evidence Sanctions. Because the Court has ordered that the IME proceed, the issue and evidence sanctions are moot. However, should Plaintiff not comply with the Court's Order, Defendants may raise this issue again.

Monetary Sanctions. Defendants seek \$20,200 in monetary sanctions. This is comprised of 33 hours spent by Paul Caleo who requests \$300 per hour, 26 hours spent by Julie Chen who requests \$250 per hour, and 8 hours of paralegal time that bills at \$125 per hour. Additionally, Dr. Greene invoiced Defendants \$2,800 for the cancelled November 8, 2024 IME. The Court imposes the \$2,800 invoiced by Dr. Greene as that is an out-of-pocket cost caused by Plaintiff's counsel's actions. While the Court is inclined to grant the full amount of attorney's fees requested, the Court finds that the hours spent on the motion are excessive. The Court also takes into account that Plaintiff did not oppose the motion and instead has agreed to sit for an IME. Based on those two factors, the Court will reduce the requested attorney's fees by half. Sanctions are imposed in the amount of \$11,500 (\$2,800 for Dr. Greene and \$8,700 in attorney's fees). As the conduct in this case appears to be attributed to counsel, the sanctions will be imposed counsel only.

The motion is **GRANTED**. Absent an agreement between the parties for a different date, Plaintiff is ordered to sit for the IME on December 2, 2024, at 8:30 a.m. If Plaintiff does not sit for the IME on December 2, 2024, Plaintiff is ordered to sit for the IME at Dr. Greene's next available appointment. Monetary sanctions are imposed against Plaintiff's counsel in the amount of \$11,500. Defendants provided a proposed Order that will be modified to reflect the Court's ruling.